

Data processing addendum

SYNTHETIC HOLDOUT FIXTURE - fictional terms for software evaluation only; not a real agreement or legal advice.

Processing instructions and incidents

1. Roles and instructions

Example Customer determines the purposes of processing Platform Data and Example Processor handles it only to provide the inventory service. Platform Data means the fictional account records described in Schedule D. Example Processor must not sell Platform Data or use it for an unrelated analytics service. An instruction that would breach the agreed security schedule must be referred back to Example Customer before execution.

2. General breach notice

Example Processor must notify Example Customer within thirty-six hours after confirming a Personal Data Breach, using facts then known and sending updates as information develops. The notice must identify the affected Platform Data categories, likely impact and containment steps when reasonably available. Suspicion alone triggers prompt investigation, but it does not start this confirmed-breach clock. Clause D4 later changes this period only for a defined Platform Data incident.

3. Assistance

Example Processor will preserve relevant logs and assist Example Customer with notices and inquiries concerning the confirmed incident. Example Customer remains responsible for deciding whether a regulatory or individual notice is required. This assistance does not authorize Example Processor to make a public admission on Example Customer's behalf.

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Subprocessors and objections

4. New subprocessor notice

Example Processor must give fourteen days' advance notice of a new subprocessor. Example Customer may object on documented data-protection grounds within that period. If the parties cannot resolve the objection, Example Processor must not place the disputed processing with that subprocessor and may offer an alternative service path. Mere silence after the notice period is not a waiver of a material security breach.

5. Existing suppliers

The approved hosting and support suppliers named in Schedule D may continue performing their listed tasks. Example Processor remains responsible for their compliance with the same confidentiality and security duties. The notice process in clause 4 applies to a new supplier or a material expansion of an existing supplier's access, not to a clerical change in the supplier's address.

6. Processing record

Example Processor will keep an accurate record of which subprocessor handled Platform Data and the broad task assigned. The record is available to Example Customer on reasonable request. A record entry is evidence of the task performed, not a substitute for the advance notice required by clause 4.

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Location and transfer safeguards

7. Permitted regions

Routine Platform Data hosting is limited to the United Kingdom and the European Economic Area. Transfers outside the United Kingdom or EEA require the agreed transfer mechanism before the transfer begins. A support call with no access to Platform Data does not itself count as a transfer, but remote access to readable records does. Example Customer may ask for the destination and mechanism used for a particular transfer.

8. Emergency access

A security emergency does not by itself dispense with clause 7's transfer mechanism. If a remote specialist outside the permitted regions needs access, Example Processor must first establish the agreed mechanism and log the scope and duration of access. The specialist receives only the records needed for containment.

9. Return to normal operation

Following emergency access, Example Processor must revoke temporary credentials and confirm the disposition of any downloaded copy. The parties will review whether a continuing transfer arrangement is needed. An emergency incident report is not evidence that all copies were deleted.

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Audit and evidence

10. Routine audit

Example Customer may conduct one routine audit each year, with a further focused audit after a material confirmed incident. A routine audit requires ten business days' notice and must avoid unnecessary access to another customer's data. A focused incident audit may begin sooner where delay would materially prejudice fact finding, but its scope is limited to the incident and related controls.

11. Evidence package

Example Processor will supply current security policies, the relevant subprocessor list and a summary of remedial actions reasonably requested for an audit. Raw access logs may contain third-party information and can be inspected through a controlled review instead of copied without restriction. The audit right does not transfer ownership of the logs.

12. Cost allocation

Each party bears its own routine audit staff costs. Example Processor bears reasonable remediation costs for a verified failure of its stated controls. A finding based only on an unconfirmed allegation does not by itself allocate remediation costs.

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Schedule D - narrow incident amendment and exit

D4. Platform Data notice amendment

For Platform Data incidents confirmed on or after 1 July 2026, the notice period in clause 2 becomes twenty-four hours; other incidents retain thirty-six hours. The shorter period begins on confirmation, not first suspicion or the time a customer complaint arrives. Example Processor must still send follow-up facts as they become known. This amendment changes only the customer notice clock, not any separate regulator deadline.

D5. End of service

Within sixty days after termination, Example Processor must return or delete Platform Data at Example Customer's choice, except a copy required by law may remain access-restricted for the required period. A backup copy that cannot be immediately isolated must be put beyond routine use and removed at the next scheduled cycle, no later than ninety days after termination. Example Processor will confirm the action taken without falsely certifying that a lawful hold was erased.

D6. Schedule relationship

The notice amendment in D4 applies only within its stated incident category and start date. Clauses 4 and 7 continue to govern new subprocessors and external transfers. Nothing in this Schedule permits an unapproved new data use or waives a confirmed-breach investigation.